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Purpose:	To outline how the Guild administers Referenda.

1. Interpretation

- 1.1 These Regulations are written with the intent of ensuring fair and democratic referenda at the University of Birmingham Guild of Students (“the Guild”).
- 1.2 These Regulations are in conjunction with the Guild’s Bye-Laws, but do not supersede them. Please refer to the Bye-Laws in addition to these Regulations.
- 1.3 The Returning Officer of a referendum shall have the final say over the interpretation of these Regulations.
- 1.4 These Regulations shall apply to all referenda as defined in the Guild’s Articles of Association.
- 1.5 These Regulations, all other Guild governing documents, the legislation (including, without limitation, the Regulations) of the University of Birmingham (“the University”), and all Laws of the Land shall govern students of the University as regards referenda to which these Regulations apply.

2. Enforcement of the Regulations

- 2.1 The Returning Officer shall be appointed by the Guild’s Chief Executive Officer, and shall normally be a member of the Guild’s Senior Management Team.
- 2.2 The Returning Officer may delegate the management of appropriate business to a Nominee (or Nominees). Those Nominees shall include a Deputy Returning Officer.
- 2.3 The Returning Officer shall be responsible for the good conduct and administration of the referendum and shall have final interpretation of these Regulations. However, the Nominee(s) (including the Deputy Returning Officer) shall be responsible for the day-to-day good conduct and administration of the referendum and shall provide such confirmation as may be requested by or on behalf of the Returning Officer concerning the conduct and administration of the referendum.
- 2.4 The Returning Officer or Nominee(s) may receive complaints from Full Members regarding the possibility of a Full Member(s) having broken these Regulations.
- 2.5 The Returning Officer or Nominee(s) may instigate investigations into breaches of these Regulations without the need for a complaint to be submitted, where there is reasonable cause to believe a breach has been committed.
- 2.6 For the purpose of all referenda to which these Regulations apply, the following Returning Officer structure shall be in place:
 - 2.6.1 Complaints about, and investigations regarding a Full Member having possibly broken these Regulations may be determined and decided by the Deputy Returning Officer;
 - 2.6.2 Appeals against those decisions shall be determined and decided by the Returning Officer; save that
 - 2.6.3 Complaints about, and investigations regarding, a Full Member having possibly broken these Regulations which, in the reasonable opinion of the Deputy Returning Officer, relate to a material issue affecting whether or not the referendum was fair and democratic shall be referred for determination by the Returning Officer.
 - 2.6.4 Appeals against the decisions of the Returning Officer in relation to such complaints and investigations shall be determined by the Board of Trustees.

- 2.7 Full Members in breach of these Regulations may be subject to Guild and/or University discipline procedures, and/or legal proceedings.
- 2.8 Declaration that a referendum is null and void:
 - 2.8.1 In a referendum which is not held upon the resolution of the Guild's Trustee Board, and when the Returning Officer reasonably believes that, in all the circumstances, no alternative direction can be imposed with the effect that, by virtue of its imposition, the referendum will have been fairly and properly conducted, the Returning Officer may recommend to the Guild's Trustee Board that it declare a referendum null and void, and call for it to be re-run.
 - 2.8.2 In a referendum which is held upon the resolution of the Guild's Trustee Board, the Guild shall specify in writing the circumstances in which, in order for the referendum to have been fairly and properly conducted, it may be declared null and void, and called upon to be re-run.

3 Complaints and Investigations Procedure

- 3.1 All complaints and investigations about a Full Member having possibly broken these Regulations shall be subject to the following procedure.
- 3.2 Complaints must be made in writing to the Returning Officer via the Guild website.
- 3.3 Complaints may be submitted up to two days after the close of voting in the referendum.
- 3.4 Where the Returning Officer or Deputy Returning Officer (as appropriate) determines, based on the evidence before them and on the balance of probabilities, that these Regulations have been broken they may issue regulatory directions ("Sanctions").
- 3.5 Sanctions may at the discretion of the Returning Officer or Deputy Returning Officer be issued to a Full Member(s) or to a recognised campaign with which, in the reasonable opinion of the Returning Officer or Deputy Returning Officer, the Full Member(s) associate having due regard to the severity and consequences of the breach of the relevant Regulation.

4 Campaigning

- 4.1 Full Members who have not opted out of membership of the Guild shall be eligible to campaign within a referendum.
- 4.2 Students must sign-up to be a Campaigner. The Guild shall provide a mechanism for Full Members to do this. This will be published on the Guild website.
 - 4.2.1 Signing up to be a Campaigner allows Full Members to formally campaign for a stance within the referendum. It also allows Full Members to join a Campaign Team and access a budget from the Guild for their campaign.
 - 4.2.2 Any Full Member may act as a supporter of a Campaign Team by individually supporting a stance within the referendum. This does not require them to join a Campaign Team. They will not be able to access a budget or be recognised as a Campaigner or as member of a Campaign Team.
- 4.3 The Guild shall arrange a meeting for Full Members who wish to be part of a Campaign Team.
 - 4.3.1 This meeting, where possible, shall take place no later than two weeks before the open of voting.
 - 4.3.2 Campaigners shall submit the name of one Full Member to be their Leader at the end of this meeting.
 - 4.3.3 Any Campaigners shall be able to nominate themselves as the Campaign Team Leader.

4.3.3.1 If more than 1 individual nominates themselves as Campaign Team Leader, a vote shall be held at the meeting to appoint the Campaign Team Leader.

4.3.4 The Campaign Team Leader shall be responsible for all administrative processes on behalf of their Campaign Team and ensuring that the conduct of their Campaign Team does not violate these Regulations.

4.4 Campaign Teams

4.4.1 The Returning Officer may allow the formal recognition of Campaign Teams for the voting options for any referendum; normally Yes, No, Abstain.

4.4.2 The Guild at its discretion may provide a budget, resources or opportunities for recognised Campaign Teams.

4.4.2.1 Campaign Teams shall not spend more than the budget (if any) given to them by the Guild in connection with their campaign.

4.4.2.2 Campaign Team Leaders, or their nominated Deputy, must complete spending their budget (if any) and submit receipts for all expenditure claims by the date specified in writing by the Guild.

4.4.2.3 All resources or opportunities will be provided to the Campaign Team Leader on behalf of their Campaign Team, or their nominated deputy, and only issued once per referenda.

4.4.3 The Returning Officer will ensure that any budget, resources or opportunities provided and offered to recognised Campaign Teams by the Guild, are equally offered to each of the recognised Campaign Teams.

4.4.4 The Guild will publish Campaign Guidance which will include the details of the method of identification and recognition of Campaign Teams, the process by which any budget, resources or opportunities provided can be requested and secured, and the requirements on Campaign Teams in regard to them accepting any such budget, resources or opportunities.

4.4.4.1 For the avoidance of doubt, all campaign materials must be reviewed by the Guild to ensure they are lawful before being shared as part of the campaign.

4.5 No Full Member or recognised campaign shall in connection with a referendum seek or endorse the support of a body external to the Guild which seeks to improperly influence the outcome of that referendum.

4.6 No Full Member shall attempt to improperly influence or intimidate any Full Member voting during the referendum period.

4.7 No Full Member shall touch the instrument or device used by another Full Member when voting in any Referendum.

4.8 Full Members must adhere to Guild and University regulations when displaying campaign materials, and to guidance/permission provided by the University's Estates department.

4.9 A Full Member may only cover, move or alter campaign materials which they themselves have put up.

4.10 Full Members shall be responsible for removing all of their own campaign materials within such time period after the close of voting as is specified in writing by the Guild.

4.11 The Guild and the Returning Officer shall not in connection with a referendum:

4.11.1 Restrict lawful expression by Full Members conducted independently of Guild resources.

Publish information in the furtherance of any recognised campaign.

- 4.12 Without prejudice to the foregoing, and subject to the need to ensure fair and democratic referenda, the Guild may publish information in relation to the subject matter of a referendum in order that Full Members are able to cast an informed vote in a referendum.
- 4.13 The Guild may direct in writing that active Student Groups (excluding the Sports Clubs) be permitted to support a stance in the Referendum to which these Regulations apply.

5 Voting

- 5.1 The quorum for a referendum shall be calculated as at the date on which the Guild Officer Group sets the date for the referendum to be held.
- 5.2 The quorum for a referendum shall be published by the Guild on its website before voting opens.
- 5.3 Wherever possible, voting shall take place online via the Guild website.
- 5.4 Where online voting is not possible, or where online voting becomes inoperable, a paper ballot shall be conducted in accordance with the Guild's Paper Ballot Procedure.
- 5.5 Voting options in a referendum will be determined by the Returning Officer, and under normal circumstances will be:
- Yes: the voter votes in favour of the principal question posed in referendum.
 - No: the voter votes in opposition to the principal question posed in the referendum.
 - Abstain: the voter votes neither in favour of nor in opposition to the principal question posed in the referendum.

6 Results

- 6.1 Results shall usually be announced no less than two weeks after the close of voting. All results shall remain provisional until the Returning Officer is satisfied with the conduct of the election and following the closure of any complaints.
- 6.2 If the voting options are 'Yes', 'No' and 'Abstain':
- 6.2.1 'Abstain' votes shall be counted towards the total votes cast in the referendum.
- 6.2.2 The referendum shall pass and be implemented by the Guild if it is quorate and the 'Yes' vote reaches 50% + 1 votes of the total votes cast.
- 6.3 If the voting options are other than 'Yes', 'No' and 'Abstain', the Returning Officer shall issue a direction as to the circumstances in which referendum shall pass and be implemented by the Guild.

7 Review Cycle

- 7.1 These Regulations shall be reviewed each academic year.